

[Firm Letterhead]

VIA EMAIL AND FIRST-CLASS MAIL

Counsel for Mr. Deshmukh

Re: Preservation of Evidence and Cease-and-Desist Demand Regarding Misappropriation of Trade Secrets and Breach of Contractual Obligations

Dear Counsel:

We write on behalf of our client (the "Company") regarding Mr. Deshmukh's departure and his handling of certain confidential and proprietary materials belonging to the Company, including without limitation calibration methodologies, related technical documentation, and associated engineering notebooks and repository materials. This letter sets out the factual and legal basis for our client's concerns, and it demands specific preservation, accounting, and non-disclosure undertakings, as detailed below.

1. Factual Background

During the course of his employment, Mr. Deshmukh had access to a restricted engineering repository containing the Company's proprietary calibration methodology, associated source materials, and supporting technical notebooks. Access to this repository was limited to designated personnel and the materials contained therein were and are marked and treated as confidential. Following Mr. Deshmukh's departure, the Company identified access and handling of these materials that raises significant concern regarding the retention, copying, or disclosure of trade secret and confidential information.

2. Legal Basis

The Company's position rests on two independent and mutually reinforcing bases:

- 1 Trade Secret Misappropriation. The calibration methodology and related technical materials constitute trade secrets under applicable law. The Company undertook reasonable measures to maintain their secrecy, including restricted repository access and confidentiality marking of the relevant materials. These measures independently support trade-secret status regardless of any open question concerning notebook-level marking practices, which, if ultimately unresolved in the Company's favor, would at most narrow — and would not defeat — the trade secret claim as it pertains to the calibration methodology.
- 2 Breach of Contract. Mr. Deshmukh was and remains bound by confidentiality, assignment, and post-employment obligations under his employment and related agreements, which independently prohibit the retention, use, or disclosure of the Company's confidential and proprietary information following separation.

Each of these bases, standing alone, supports the demands set forth below.

3. Demands

In light of the foregoing, the Company demands that Mr. Deshmukh, by no later than five (5) business days from the date of this letter:

- 1 Preservation. Immediately preserve, and refrain from deleting, altering, or destroying, any and all documents, communications, source materials, notebooks, repositories, devices, cloud storage accounts, or other media that contain or may contain the Company's confidential or proprietary information, including but not limited to any copies made of the calibration methodology materials or related notebooks.
- 2 Accounting. Provide a written accounting identifying all Company confidential or proprietary materials in Mr. Deshmukh's possession, custody, or control, or that have been transmitted to any third party, including the date, manner, and recipient of any such transmission.
- 3 Non-Disclosure. Confirm in writing that Mr. Deshmukh has not disclosed, and will not disclose, any Company confidential or proprietary information to any third party, including any current or prospective employer, and will not use such information for any purpose.

This letter does not, at this time, demand that Mr. Deshmukh cease any particular current use of Company information, and it is not to be construed as a waiver of the Company's right to seek such relief, including injunctive relief, at a later date should circumstances warrant. The Company reserves all rights in that regard, including in light of pending patent filings related to the underlying technology, and is prepared to seek immediate injunctive and other relief if it learns of active use of its confidential information, including in connection with any competitor.

4. Reservation of Rights

Nothing in this letter is intended as, nor should it be construed as, a complete statement of the Company's rights or remedies, all of which are expressly reserved, including but not limited to claims for injunctive relief, damages, and attorneys' fees under applicable trade secret and contract law. The Company's forbearance from seeking broader relief at this time reflects the current state of its investigation and should not be understood as a limitation on the relief it may seek going forward.

We request your prompt attention to this matter and a written response confirming compliance with the above demands within the time specified. Please direct all communications regarding this matter to the undersigned.

Sincerely,

Klara Bendtsen Senior Associate, IP & Technology